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Tentative Ruling

DEMURRER

OF DEFENDANT POMONA VALLEY HOSPITAL MEDICAL CENTER (erroneously served and sued as POMONA VALLEY HOSPITAL AND MEDICAL CENTER) TO PLAINTIFF'S FIRST AMENDED COMPLAINT is SUSTAINED in part with 45 days leave to amend and OVERRULED in part; the demurrer is overruled as to the 1st COA for professional negligence because the SOL is an evidentiary issue not proper for a demurrer and sustained as to the 2nd and 3rd COAs for the elder abuse and EADACPA as they are insufficiently pled (i.e., no recklessness/custodial relationship).

Background

This

is an elder abuse case. Plaintiff Cecila Jackson alleges the following against Defendant Pomona Valley Hospital and Medical Center ("Pomona Valley"): From January 2023 to May 2023, Plaintiff was in a cardiac rehabilitation and physical therapy program at Pomona Valley. The program used treadmill therapy at increased speed and incline, which Plaintiff alleges caused her injury both during and after the program.

On

May 5, 2026, Plaintiff (appearing in propia persona) filed suit.

On

June 16, 2026, Plaintiff filed a first amended complaint (FAC) for:

1.

Professional Negligence

2.

Elder Abuse/Neglect

3.

Dependent Adult Civil Protection Act (EADACPA)

On

June 17, 2026, the instant demurrer was filed.

On

July 30, 2026, Plaintiff filed her opposition.

On

August 6, 2026, a reply was filed.

Discussion

Pomona Valley

("Defendant") brings forth this demurrer based on California Code of Civil Procedure sections 430.10(e) & (f) upon the following grounds: (1) The FAC is barred in its entirety by the statute of limitations as set forth in Code of Civil Procedure section 340.5 [the one-year statute of limitations] bars the FAC in its entirety; (2) In the alternative, the FAC fails to state a claim for Elder Abuse/Neglect; and (3) In the alternative, Plaintiff's claim for Elder Abuse/Neglect is Barred by the statute of limitations as set forth in Code of Civil Procedure section 335.1.

For reasons to be explained below, the court overrules the demurrer on the first ground (SOL) but does sustain the demurrer as to elder abuse COAs.

The

applicable statute of limitations, Code of Civil Procedure section 340.5, provides in pertinent part, "[i]n an action for injury or death against a health care provider based upon such person's alleged professional

negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Emphasis added.) Thus, the statute contains a one-year and a three-year provision, both of which must be met for an action to be timely. (Demurrer p. 6, citing *Trantafello v. Medical Center of Tarzana* (1986) 182 Cal. App.3d 315, 318.)

Defendant

argues that because the FAC alleges that the “[d]uring and after the rehabilitation program, Plaintiff developed progressive neck pain, shoulder pain, upper back pain, spinal symptoms, weakness, reduced mobility, and functional limitations” ¶16, emphasis added)

then that is when the SOL began to run because that is when she had notice of the wrong(doing). As correctly summarized in the demurrer, the limitations period begins when the plaintiff suspects, or should suspect, that she has been wronged. (See *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1114; see also *Sanchez v. South Hoover Hospital* (1976) 18 Cal.3d 93.) One example this wrong is pain. (See Demurrer p. 6, citing *Enfield v. Hunt* (1984) 162 Cal.App.3d 302, 310.)

However,

as argued in opposition, symptoms may alert a patient that something is wrong, but that does not always mean the patient reasonably suspected that a hospital-directed rehabilitation program was negligently administered. (See FAC ¶15 [“Plaintiff alleges that the rehabilitation program caused cumulative injury rather than one single isolated traumatic event.”], emphasis added].) And though not argued by Plaintiff, this is especially when the program involves exercise, which for many does involve pain just by the very nature of the activity (i.e., “working out”).

To

the extent that there is a dispute as to when the SOL of the wrong i.e., that the treadmill rehabilitation may have been negligently administered or that the rehabilitation protocols could have caused or contributed to Plaintiff’s injury, that but emphasizes that such an inquiry cannot be resolved on this demurrer. For one, all inferences must be made in light most favorable to a plaintiff and the untimeliness must clearly and affirmatively appear on the face of the complaint. (See e.g., *Schmier v. City of Berkeley* (2022) 76 Cal.App.5th 549, 554.) And

this latter point is even illustrated by Defendant's own citations which discussed the SOL at different procedural postures of the case. (See e.g. *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 1999 [summary judgment]; *Enfield*, supra [summary judgment]; *Sanchez*, supra [summary judgment]; *Trantafello*, supra [summary judgment].)

Notwithstanding, the court agrees the elder abuse COA is insufficiently pled. In *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 784, the California Supreme Court stated that recovery against a health care provider under the Act was intended only for "egregious acts of misconduct distinct from professional negligence..." (emphasis added.) As stated by the court in *Worsham v. O'Connor Hospital* (2014) 226 Cal. App.4th 331, 336, "The Elder Abuse Act does not apply to simple or gross negligence by health care providers." (emphasis added.) Thus, even gross negligence is insufficient to give rise to the cause of action. Rather, what is required by California Welfare & Institutions Code section 15657 is "recklessness, oppression, fraud or malice."

Plaintiff's opposition does not address the relevant law that governs these claims. While the court recognizes that Plaintiff is pro per such that the canons and commentary "provide a path to ensure a self-represented litigant can be fairly heard on the merits while the court maintains its impartiality and does not assume (or appear to assume) the role of advocate or partisan" (*Holloway v. Quetel* (2015) 242 Cal.App.4th 1425, 1434), a pro per party is still held to the same standards of an attorney. (*Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1267 ["Further, the in propria persona litigant is held to the same restrictive rules of procedure as an attorney. [] In other words, when a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome, and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel."].) Plainly put, this means that where Defendant raises certain case law and supporting arguments, Plaintiff has an obligation to respond to them and also support her own arguments with case law. (*Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215 ["Contentions are waived when a party fails to support them with reasoned argument and citations to authority."].)

Thus, as recklessness has not been pled, the court sustains the demurrer. Another

grounds to sustain the demurrer as to these COAs is that Plaintiff does not address Defendant's argument that the FAC fails to plead a custodial relationship. (See e.g., *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148,158 [Plaintiff must be able to plead, "the existence of a robust caretaking or custodial relationship—that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance."].) Though an amended complaint is unlikely to rectify this defect and Plaintiff has not met her burden in demonstrating what facts could be pled, in the interest of justice and fairness, the court gives leave to amend.

Conclusion

Based

on the foregoing, the demurrer is SUSTAINED with 45 days leave to amend as to the 2nd and 3rd COAs and OVERRULED as to the 1st COA.